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JUDGMENT SHEET

LAHORE HIGH COURT

MULTAN BENCH MULTAN

JUDICIAL DEPARTMENT

Writ Petition No.11052 of 2024

Shahid Saleem Vs. Govt. of Punjab, etc.

J U D G M E N T

Date of Hearing:	13.03.2025.
Petitioner by:	Sardar Riaz Karim, Advocate.
Respondents by:	Malik Muhammad Bakhsh Khakhi, Assistant Advocate General. Mr. Umair Shahid, Advocate for respondents alongwith Khurram Shahzad, Deputy Director, TEVTA, Multan.

Anwaar Hussain, J. This case presents an intriguing question of whether the competent authority, which initially disagreed with the recommendation of removal from service proposed by the Inquiry Officer and imposed a lesser penalty (demotion), can later on, upon remand of the matter by the Appellate Authority and after holding *de-novo* inquiry, inflict a more severe punishment (of removal from service).

2. By way of factual background, it has been noted that the petitioner was performing his duties as Assistant/Head Clerk/Apprenticeship Officer (Additional Charge) at Regional Directorate of Apprenticeship Training (RDAT), Multan, when an inquiry was initiated under the Punjab Employees Efficiency, Discipline & Accountability Act, 2006 (“**PEEDA**”) against the

petitioner on charges of non-accomplishment of official assignment of handing over the complete charge of apprenticeship certificates; tempering the original certificates of apprenticeship; and forwarding of two fake letters to NAVTTC on the subject “verification of Apprenticeship Certificate” with fake/tempered details and fake signatures of Deputy Director RDAT, Multan and after an inquiry, major penalty of removal from service was recommended, however, respondent No.5/Director (AT), TEVTA, Punjab Lahore (“**the Competent Authority**”), through order dated 31.07.2023, imposed penalty of reduction to a lower post of Computer Operator PS-15 for a period of 03-years. Order dated 31.07.2023 was challenged in appeal by the petitioner before respondent No.4 i.e., Director General (OPS-II), TEVTA, Punjab Lahore and through order dated 12.12.2023, the former order was set aside and the matter was remanded to the Competent Authority, with direction to hold a *de-novo* inquiry under Section 16(2)(d) of the PEEDA. Accordingly *de-novo* inquiry was held and through report dated 25.04.2024, the Inquiry Officer recommended penalties of fine of one-month basic pay and removal from service, which recommendations were agreed to by the Competent Authority and through impugned order dated 28.06.2024, major penalty of removal from service was imposed, which order has been upheld in appeal, *vide* order dated 28.08.2024, by respondent No.4.

3. Learned counsel for the petitioner contends that regular inquiry was not conducted, which otherwise is imperative to determine the allegations, regarding tempering of the documents. Adds that no justification was provided as to why regular inquiry was not required or conducted. Further contends that without any substantial justification, the Competent Authority has imposed enhanced punishment although in the earlier round of proceedings, through order dated 31.07.2023, lesser punishment was imposed by

the Competent Authority and therefore, the said inconsistency violates principles of fairness in disciplinary proceedings.

4. Conversely, learned counsel for the respondents submits that this Court cannot substitute its findings with the recommendations of the Inquiry Officer and/or the Competent Authority and places reliance upon cases reported as “Postmaster General Balochistan v. Amanat Ali and others” (2024 SCMR 1484) and “Packages Limited through Group Manager v. Punjab Labour Appellate Tribunal and another” (2025 PLC 1). Further contends that in the earlier round lenient view was taken on the basis of compassionate/humanitarian grounds.

5. Arguments heard. Record perused.

6. Upon an inquiry conducted on the direction of the Competent Authority, a report was submitted with recommendation to impose major penalty of removal from service, however, the Competent Authority examined the allegations and through order dated 31.07.2023 imposed penalty by way of demotion, instead of removal from service, as recommended by the Inquiry Officer. It is imperative to note that the setting aside of the order dated 31.07.2023, by the Appellate Authority, and the direction for a *de-novo* inquiry was not on account of new material or graver misconduct but merely due to the procedural shortcomings. The Appellate Authority, in its earlier order dated 12.12.2023 held as under:

“3. AND WHEREAS, after examining the inquiry report & hearing the accused in person, it was found that the merits of the case have been ignored by the Inquiry Officer. The inquiry report is found to be substandard and devoid of merit. The Inquiry Officer failed to bring the facts to surface.

4. Now, THEREFORE, in exercise of the powers conferred upon me, I AAMER AZIZ, being Appellate Authority, do hereby set aside the order dated 31.07.2023

and remand the case to the Competent Authority/Director AT, TEVTA Secretariat with direction to hold a de novo inquiry under section 16(2)(d) of PEEDA Act, 2006 against the appellant Mr. Shahid Saleem, Head Clerk/Ex-Apprenticeship Office (PS-16) Regional Directorate of Apprenticeship Training, Multan.”

It was not a case where the earlier penalty was deemed inadequate, rather, the procedure adopted by the respondent-department was considered improper, requiring rectification. Therefore, the fresh inquiry was meant to validate the procedural fairness and not to reconsider the proportionality of the punishment. By imposing a harsher penalty (removal from service), the Competent Authority acted in an unfair and unjust manner. Once the Competent Authority, in its wisdom, imposed a lesser penalty (demotion), the petitioner had a legitimate expectation that the disciplinary matter was conclusively determined to the extent of quantum of punishment.

7. Moreover, the principle of proportionality in service law dictates that punishment must correspond to the gravity of the misconduct. The Competent Authority, in the first instance, determined that demotion was an appropriate response to the alleged misconduct. There was no aggravated misconduct in the *de-novo* inquiry and therefore, imposing a more severe penalty, upon rehearing the same set of allegations, violates the principle of proportionality and creates an impression of double jeopardy in the disciplinary proceedings. Argument of learned counsel for the respondents that, earlier, the lenient view was taken on **compassionate/humanitarian grounds** is belied by the record inasmuch as it does not find mention in the earlier order dated 31.07.2023. In post remand proceedings, while imposing the major penalty through impugned order dated 28.06.2024, the Competent Authority, held as under:

“9. AND WHEREAS, after receipt of Inquiry Report, the undersigned being Competent Authority provided him an opportunity of personal hearing on 26.06.2024 vide personal hearing notice dated 14.06.2024. The accused officer appeared for personal hearing before the undersigned and was heard at length. He failed to provide any document or written defense in his favor. Nor could he prove his innocence during the hearing. As such, he is found guilty of gross misconduct and inefficiency, and is liable to be removed from service immediately.

10. NOW, THEREFORE, after going through the record and facts of the case, hearing the accused officer in person on 26.06.2024, I, Dr. Waheed Asghar, Director (AT), being Competent Authority, do hereby agree with the recommendations of the Inquiry Officer and impose the penalties of “Fine of one month basic pay” and “Removal from service” under section 4(1)(a)(iii) & (b)(v) of PEEDA Act, 2006 upon Mr. Shahid Saleem, Assistant/Head Clerk (PS-16) Regional Directorate of Apprenticeship Training, Multan, with immediate effect.”

The above quoted operative part of the impugned order indicates that the Competent Authority has not given any reason whatsoever from deviating from its earlier decision to impose the lesser punishment. Once a particular penalty of demotion had been imposed by the Competent Authority, and the petitioner had assailed the said findings before the appellate forum, which remanded the matter for *de-novo* inquiry, the imposition of harsher punishment by the Competent Authority, during post remand proceedings, on the basis of same set of allegations and charges runs contrary to the principle of fairness. It is noted that neither any additional charge of misconduct nor any supporting evidence has been put forth or such aspect has been discussed and examined in the impugned order passed by the Competent Authority justifying the deviation from its earlier decision and conclusion, in the pre-remand proceeding. Reported cases referred by learned counsel for the respondents have been considered. The same are settled principles of law that the High Court cannot interfere in matters involving factual controversy and

cannot substitute the findings of the departmental authorities with that of its own, however, in present case, this Court has not absolved the petitioner from the charges of misconduct, but is dissatisfied with the mechanism of imposing conflicting punishment on the same set of allegations, by the same Competent Authority, therefore, reliance on the case law is misplaced.

8. Matter can be examined from another angle. Had the petitioner not preferred an appeal, his punishment would have remained demotion. It is untenable and unjust to penalize an individual for exercising his legal right to prefer an appeal by subjecting him to a harsher penalty, on the same set of allegations. The government and its instrumentalities are bound by the principle that they cannot act to the detriment of an individual, merely, because he pursued a lawful remedy. This is consistent with the doctrine of estoppel, which prevents public authorities from acting in a manner that contradicts their prior conduct to the detriment of an individual.

9. In view of the above discussion, the present petition is **allowed**. As a corollary, the impugned orders are set aside, and the matter shall be deemed to be pending before the Competent Authority to determine the quantum of punishment that cannot be harsher than the punishment earlier imposed upon the petitioner.

(ANWAAR HUSSAIN)
JUDGE

Approved for reporting

Judge